IN THE COURT OF THE HON'BLE FOURTH ADDITIONAL DISTRICT JUDGE OF COIMBATORE

I.A.NO. 4 of 2024

A.S.NO. 20 of 2023

1. Swami Subramanian Chetty (Died)
2. Balashanmugam … Petitioner/Appellants

-Versus-

1. S.U.Srihari
2. Shyam Sundar.

… Respondent Nos. 2 and 3

/Respondent Nos.2 and 3

COUNTER STATEMENT FILED BY THE 2nd RESPONDENT AND ADOPTED BY RESPONDENT No. 3

1. This respondent submits that the petition is false, frivolous, vexatious and unsustainable both in law and on facts of the case.

2. The petitioner is put to strict proof of all the averments except those that are specifically admitted herein.

3. The averments in para 2 to 7 of the affidavit that the petitioner herein got back his case bundle from the previous counsel who filed appeal to save limitation and thereafter on verification of case bundle, there were certain documents missing and the certified copies of the same were obtained and on its perusal, the petitioner was necessitated to file additional grounds and more particularly certain documents were marked before trial court without proper petition as well from permission of court which is utter violation of court proceedings and thereby the additional grounds now filed, be permitted orelse the petitioner will be put to hardship etc., are stoutly and categorically denied as false.

4. This respondent most humbly submits that the reasons set out in the affidavit for filing additional grounds is totally false. On the other hand, the petitioner did not at

all mention specifically about the procedural lapse alleged by him before trial court. Moreso, the affidavit itself speaks that documents were marked and at that time the petitioner was represented through counsel and whileso at present the petitioner is estopped from agitating the same issue before appellate court.

5. The averments that Exhibits B1 and B2 being proceedings of Hon'ble Supreme court were not found in list of documents filed before trial court and similarly the proof affidavit filed by the 2nd respondent also did not contain the said Exhibits B1 and B2 which the trial court failed to note and thus, the respondents fraudulently interpolated Exhibits B1 and B2 in place of documents which were already produced by respondents and received by the trial court etc., are stoutly and categorically denied as false. The averments that the trial court failed to note that the alleged fraudulent act of the respondents constitute grave illegality and amounts to manipulation of records in custody of trial court and thereby liable for contempt etc., are also not admitted as correct.

6. The averments that the trial court in contravention of Rule 79 of Civil Rules of Practice surreptitiously marked the interpolated photocopy of orders in I.A.Nos.2 and 3 of 1993 as Exhibit B1 and photocopy of record of proceedings of Supreme Court as Exhibit B2 for first time while cross examination of this appellant is stoutly and categorically denied as false. In fact, during cross examination before trial court, the appellant categorically admitted Exhibit B1 and B2 regarding passing of orders by Hon'ble Supreme Court and thereby the certified copies of the same were marked as exhibits. It is pertinent to note here that those documents are certified copies obtained from registry of Hon'ble Supreme Court and not photocopy as alleged by the petitioner herein. As such, there is no procedural lapse while marking Exhibit B1 and B2 and rather the appellant by suppression of those orders viz., Exhibit B1 and B2, filed the suit which was rightly dismissed by the trial court.

7. The averments that the trial court did not frame an issue of res judicata based on available materials at first and later on the said issue was re-casted by way of additional issues under order 14 rule 5 which is untenable and the action of trial court in not eschewing Exhibits B1 and B2 as irrelevant and inadmissible and on the other hand the complete reliance on those documents and thereby dismissal of suit on the

ground of Resjudicata is erroneous and as such the appellant is entitled to file additional ground is totally unsustainable in law and on facts of the case.

8. This respondent most humbly submit that the appellant suppressed the passing of orders in I.A.No.2 and 3 of 1993 before Hon'ble Supreme Court which is exactly subject matter of Plaint in O.S.No.8 of 1998 field by the appellant. More particularly the appellant after filing suit in O.S.No.8 of 1998 before trial court raised exactly the very same issue before Hon'ble Supreme Court in above I.A's in S.L.P.No. 7967/1986 which was rightly dismissed by Supreme Court and based on that, the appellant ought to have withdrawn the above suit O.S.No. 8 of 1998 but without producing the orders of Hon'ble Supreme Court, continued the suit and on the other hand these respondents obtained certified copies of Exhibits B1 and B2 being fair and final orders which categorically proves that the issues which are all raised in O.S.No. 8 of 1998 were subsequently raised in I.A.No. 2 and 3 of 1993 before Supreme Court which was later on rejected on merits and thereby the plaint in O.S.No. 8 of 1998 as dismissed on the ground of res judicata. It is the appellant who alone suppressed the facts and these respondents marked Exhibits B1 and B2 in cross examination based on the admission made by the appellant who is now estopped from denying the truth.

In Page 11, Line

The Evidence of DW1 during cross examination in this regard as follows:

(Date of Cross Examination 20.11.2018 Page 11 Line 18)

"SLP CA 1347/1986 தீர்ப்பின் நகல் என்றால் சரிதான். பி.வா.ச.ஆ.2 ஆக குறீயிடுசெய்யப்படுகிறது. பி.வா.ச.ஆ -2ல் தீர்ப்பில் CA மற்றும் SLP தள்ளுபடி செய்யப்பட்டதாகவும், இடைக்கால மனுக்களும் தள்ளுபடி செய்யப்பட்டதாகவும் உள்ள என்றால் சரிதான். பி.வா.சா.ஆ-1ன் இடைக்கால மனுவினை பற்றியும் பி.வா.சா.ஆ.2ல் கூறப்பட்டுள்ளது என்றால் சரிதான். பி.வா.சா.ஆ-1 ன் படி நான் கேட்டுள்ள பரிகாரமான சுவாதீனம் தள்ளுபடி செய்யப்பட்டுள்ளது என்றால் சரிதான். பி.வா.சா.ஆ-2 தீர்ப்பை நான் தற்போது தான் பார்க்கிறேன். பி.வா.சா.ஆ-2ன் தீர்ப்பை பற்றி தெரிந்து, அதை மறைத்து எந்தவொரு முகாந்திரமும் இல்லாமல் இந்த வழக்கினை தாக்கல் செய்து நடத்தி வருகிறேன் என்றால் சரியல்ல".

9 This respondent most humbly submits that if really they manipulated Exhibits B1 and B2 as alleged by the petitioner, nothing prevented him to proceed against these respondents at the earliest. However, the appellant by suppression of orders passed by Hon'ble Supreme Court, continued the suit on same cause of action which was brought before the learned trial court by production of order copy in Exhibits B1 and B2 that to on admission of appellant alone and the same were marked which are purely certified copies and not photocopy as alleged by the petitioner. Since Exhibits B1 and B2 were marked in cross examination of PW1 namely the petitioner herein, it is needless to mention those documents in proof affidavit filed by the respondent herein. As such the averments set out in the affidavit that those documents were marked by lapse of proceedings said to have been committed by trial court is not admitted as correct. The certified copy of Exhibit B1 and B2 itself proves that those documents were marked on 13.11.2018 in cross examination of PW1 namely Petitioner herein. Thus, it is well evident that the Exhibit B1 and B2 affect root of the suit filed by the petitioner and as such, now the petitioner is blaming the trial court on one ground or other with ulterior motive. Hence, the grounds sought for to file additional grounds of appeal is totally false and filed only to drag the proceedings which is devoid of merits. This petition is highly belated.

Therefore it is prayed that this Hon'ble Court may be pleased to pass an order by dismissing the petition with cost and thus render justice.

ADVOCATE FOR 2nd RESPONDENT **2nd RESPONDENT**

VERIFICATION

I, the Respondent No.2 above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on 12.12.2024

2nd RESPONDENT

This additional counter statement filed by the 2nd respondent is adopted by respondent no.3.

ADVOCATE FOR RESPONDENT NO.3

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Pre On:

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